



Republic of the Philippines
City of Cagayan de Oro
OFFICE OF THE CITY MAYOR

**cagayan
de Oro**
city of golden friendship



25 August 2026

**THE HONORABLE PRESIDING OFFICER and
THE HONORABLE MEMBERS OF THE SANGGUNIANG PANLUNGSOD,**
This City

SUBJECT: URGENT REQUEST TO PASS A RESOLUTION AUTHORIZING THE CITY MAYOR TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH RONALD MCDONALD HOUSE CHARITIES OF THE PHILIPPINES, INC. , THE CITY GOVERNMENT OF CAGAYAN DE ORO, AND BARANGAY CARMEN FOR THE ESTABLISHMENT AND OPERATION OF THE RONALD MCDONALD BAHAY BULILIT CHILD DEVELOPMENT CENTER

LADIES AND GENTLEMEN:

This refers to the proposed Resolution authorizing the City Mayor to enter into a Memorandum of Agreement (MOA) with Ronald McDonald House Charities of the Philippines, Inc. (RMHC) and Barangay Carmen for the establishment and operation of the Ronald McDonald Bahay Bulilit Child Development Center (CDC) situated in Barangay Carmen, Cagayan de Oro City.

The proposed undertaking seeks to provide a child development facility that will support the well-being, education, and development of children, particularly disadvantaged children five (5) years old and below, as well as Grade 1 students. The CDC is situated on a parcel of land owned by the City Government of Cagayan de Oro and is intended to provide a venue for child development programs that promote the health, safety, welfare, and holistic development of children in the community.

In view of the importance of this initiative in providing a child development facility for the benefit of children in Barangay Carmen and facilitating the lawful turnover and operation of the substantially completed Ronald McDonald Bahay Bulilit Child Development Center, may I respectfully request the Sangguniang Panlungsod to treat this matter as urgent, and to enact the proposed Resolution at the soonest possible time.

Hoping for your favorable and prompt action on this request.

Thank you.

Truly yours,

ROLANDO A. UY
City Mayor

Republic of the Philippines
OFFICE OF THE CITY COUNCIL
City of Cagayan de Oro

RECEIVED

Date: SEP 03 2026

Time: 2:24

By: JUSTIN KYLE P. ASNE
Local Legislative Staff Officer I



Republic of the Philippines
CITY OF CAGAYAN DE ORO
City Hall, Ground Floor, New Building
Tel. No. 088-557 0376

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CITY SOCIAL WELFARE AND DEVELOPMENT DEPARTMENT

ENDORSEMENT

August 24, 2026

CITY LEGAL OFFICE

RECEIVED

DATE: 8/24/26

TIME: 10:30

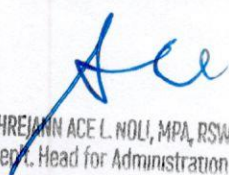
Respectfully endorsing to **ATTY. KENNETH O. TAMALA, MBA**, City Legal Officer, is the hereto-attached revised Memorandum of Agreement (MOA) regarding the Establishment of the Ronald McDonald Bahay Bulilit Child Development Center (CDC) in Barangay Carmen.

We would like to request your assistance in facilitating the City Mayor's endorsement of the MOA to the City Council for authorization.

Thank you.

In Service,

ANECIA C. TONGSON, RSW
Department Manager, CSWD


ATTY. THREINN ACE L. NOLI, MPA, RSW
Asst. Dep't. Head for Administration



"THE HEART AND CONSCIENCE OF THE CITY OF GOLDEN FRIENDSHIP"

MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This MEMORANDUM OF AGREEMENT ("MOA") is made and executed this ____ day of _____, 2025 in _____, Philippines between and among:

RONALD McDONALD HOUSE CHARITIES OF THE PHILIPPINES, INC., a non-stock, non-profit corporation duly recognized and existing under and by virtue of laws of the Republic of the Philippines, with principal office address at Blk 2 Lot 1 H.V. Dela Costa St. cor. Valero St., Salcedo Village, Makati City, represented in this act by its Vice President, **MARIA MARGARITA B. TORRES**, hereinafter referred as **RMHC**;

and

The **CITY GOVERNMENT OF CAGAYAN DE ORO** with office address at **City Hall Compound, Capistrano-Hayes Streets, Cagayan de Oro City, 9000 Philippines**, represented herein by **HON. ROLANDO A. UY**, City Mayor, hereinafter referred to as the **CITY GOVERNMENT OF CAGAYAN DE ORO**;

and

The **BARANGAY CARMEN** with office address at **Mabalo-Matilde Streets, Barangay Carmen, Cagayan de Oro City, 9000 Misamis Oriental, Philippines**, represented herein by **HON. RAINIER JOAQUIN V. UY**, Punong Barangay, hereinafter referred to as **BARANGAY**

Each a "Party" and collectively, the "Parties".

Witnesseth, that:

WHEREAS, the quality of citizenry of any country depends to a large extent on the caring that children receive during the first three years of life whereby the child's basic character and attitudes are formed and preparedness for life are shaped;

WHEREAS, parents have the primary responsibility to care for and promote the total development of their children. Furthermore, under the 1991 Local Government Code, the primary role of local government units in the development and growth of communities rest in the latter thru the exercise of service and delivery functions, among them the delivery of health and welfare services and implementation of programs and projects on primary health care, maternal and child care;

WHEREAS, the City under the 1991 Local Government Code shall exercise supervision over their respective Barangays. The Barangays shall ensure and support the health, safety, moral well-being and enhance economic prosperity to its inhabitants through a child development program;

MOA : RMHC, City Government of XXXX & Barangay XXXXX

HON. ROLANDO A. UY
City Mayor

MARIA MARGARITA B. TORRES
Vice President, RMHC

HON. RAINIER JOAQUIN V. UY
Punong Barangay, Barangay Carmen

ANECIA C. TONGSON, RSW
Head, CSWDO

MARICAR A. ANGELES
Executive Director, RMHC

HON. ROLANDO A. UY
City Mayor

MARIA MARGARITA B. TORRES
Vice President, RMHC

HON. RAINIER JOAQUIN V. UY
Punong Barangay, Barangay Carmen

WHEREAS, RMHC is a non-stock, non-profit organization with a mission to support the Filipino children well-being especially their need for education, shelter, and happiness. RMHC is registered with the Department of Social Welfare and Development (DSWD) as an Auxiliary Social Welfare and Development Agency (SWDA), particularly as a Resource Agency, that provides financial support and capability – building programs to various partners primarily for the benefit of disadvantaged children five (5) years old and below, as well as grade 1 students in Regions I – XII, CAR, CARAGA and NCR;

WHEREAS, RMHC has pre-qualified and selected the land owned by the City Government of the City Government of Cagayan de Oro particularly described as " A parcel of Land, Lot 36639-267, CSD-10-024118 being a portion of Lot 36639 CAD 237, situated at Barangay Carmen, City of Cagayan de Oro, Province of Misamis Oriental, Island of Mindanao" where the Ronald McDonald Bahay Bulilit Child Development Center (CDC) will be established.

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereby agree on the following terms and conditions, to wit:

1. RMHC has substantially completed the construction of the Ronald McDonald Bahay Bulilit Child Development Center (CDC) and shall facilitate the completion of the remaining documentary and regulatory requirements necessary for its turnover and operation.
2. The CDC was constructed in accordance with the plans, designs, and specifications attached as Annex 'A', which shall form an integral part of this Agreement.
3. The City Government of Cagayan de Oro and the Barangay shall extend full coordination and cooperation in securing the remaining permits, licenses, clearances, and documents necessary for the lawful operation of the CDC, including the issuance of the corresponding Building Permit.
4. The Parties hereby agree that RMHC has the exclusive right to decide on and to use color schemes for the painting the structure of the CDC, to decorate the interior, exterior and premises of the CDC, to install or incorporate signages, billboards, marks and other similar representations indicating RMHC as sponsor for the construction of the said project, which shall be conspicuously displayed in the CDC. The structure of the CDC nor its appearance shall not be altered or modified in any manner without the prior written consent of RMHC.

The Parties hereby agree that all identifiable designs, trademarks, logos, visual materials and the like, whether written, visual or tangible form, that shall be introduced to, placed in, attached to, posted in or otherwise made visible in the CDC or its premises, whether or not actually used as part of the child development activities and programs, shall pertain exclusively to such designs, trademarks, logos, visual materials and the like or belonging to RMHC. No other identifiable designs, trademarks, logos, visual materials and the like particularly those belonging or pertaining to other quick service restaurant, shall be introduced to, placed in, attached to, posted in or otherwise made visible in the CDC and its premises. The cost for introducing placing,

ANECIA C. TONGSON, RSW
Head, CSWDO

MARICAR A. ANGELES
Executive Director, RMHC

attaching, posting or otherwise making visible such designs, trademarks, logos, visual materials shall be borne solely and exclusively by RMHC.

The City Government of Cagayan de Oro and the Barangay may display their respective seals or other visual representations within the CDC or its premises. Any cost incurred for this purpose shall be for their respective accounts.

5. RMHC shall coordinate with the City Government and the Barangay in completing the remaining regulatory requirements necessary for the turnover and operation of the CDC.

6. Upon compliance with all remaining regulatory requirements and issuance of the necessary permits, RMHC shall formally turn over the CDC to the City Government of Cagayan de Oro and the Barangay on a date mutually agreed upon by the parties.

6.1 It is hereby understood that subsequent to the turnover of the CDC, the Barangay shall have ownership of the CDC, and the City Government of Cagayan de Oro and the Barangay shall have joint and solidary liability for the maintenance of the CDC's structure, premises, and allowable improvements thereon, including all necessary, useful, or ornamental repairs, except as provided in Section 6.2 of this MOA.

6.2 Repairs on the external walls of the CDC affecting the façade, including the paint, signages, marks, logo(s), billboards, and other intellectual properties or representations of RMHC, shall be for the sole account of RMHC.

7. The CDC or any part thereof shall not be used for purposes other than that for which it was constructed and established. For clarity, the CDC shall be used exclusively for educational, medical, and social welfare projects and initiatives that are in line with the objectives of RMHC. The CDC shall not be used as a residential space or living quarters, general storage of objects and materials not directly related to the allowed uses of CDC, venue for activities related to elections, campaigns, or other politically-motivated events, among others.

7.1 Use of the CDC for any other purpose shall be considered a material breach of this MOA. RMHC shall issue a written notice to the City Government of Cagayan de Oro and the Barangay together with instructions to cure the breach and cease the prohibited use within 30 days from receipt of the written notice.

8. The City Government of Cagayan de Oro and the Barangay shall be responsible for the continuous and regular administration, maintenance, and general operations of the CDC and shall provide an annual report every December 15 of the year to RMHC on the implementation of activities and programs conducted therein and allow inspections upon reasonable notice.

HON. ROLANDO A. UY
City Mayor

MARIA MARGARITA B. TORRES
Vice President, RMHC

HON. RAINIER JOAQUIN V. UY
Punong Barangay, Barangay Carmen

ANECIA C. TONGSON, RSW
Head, CSWDO

MARICAR A. ANGELES
Executive Director, RMHC

8.1 Suspension of the regular administration of educational, medical, or other allowed social welfare projects in the CDC for a period of at least 30 days for causes other than fortuitous events shall be considered a material breach of this MOA. RMHC shall issue a written notice to the City Government of Cagayan de Oro and the Barangay to cure the breach by immediately resuming regular operations within 60 days from receipt of the written notice.

9. RMHC reserves the right to take over the administration, management, and operation of the CDC should the City Government of Cagayan de Oro and the Barangay fail to cure any material breach. Provided, that all costs and expenses related thereto, including those stipulated in Sections 12-15 of this MOA, shall continue to be for the account of the City Government of Cagayan de Oro and the Barangay.

10. The City Government of Cagayan de Oro and the Barangay shall be responsible for obtaining and maintaining public utilities, such as water and electricity, of the CDC in accordance and compliance with the minimum standards as provided under the Republic Act No. 10410, or the Early Years Act of 2013. Any cost incurred in connection with the administration, maintenance and general operations of the CDC shall be for the account of the City Government of Cagayan de Oro and the Barangay.

11. The City Government of Cagayan de Oro and the Barangay shall be responsible for any tax, charge or other similar fee imposed by, as well as for any permit, clearance or other similar document required by any government instrumentality, agency or body, or any private entity for continued operations of the CDC. Any cost or expense that shall be incurred for the purpose shall be for the account of the City Government of Cagayan de Oro and the Barangay, as may be applicable.

12. The City Government of Cagayan de Oro and the Barangay will coordinate with the Provincial Government through Provincial ECCD Office - Misamis Oriental to be responsible for accreditation/recognition of the CDC and child development worker/teacher.

13. The City Government of Cagayan de Oro shall fund the salary of the Child Development Worker who shall be hired upon the recommendation of the City Social Welfare and Development Department (CSWDD).

14. The City Government of Cagayan de Oro and the Barangay shall ensure that the regular and ordinary upkeep of the CDC and its premises shall be maintained by child development worker in partnership with the parents.

15. The parties agree that RMHC shall have the right to refer to the CDC Project or to use pictures and other visual representations of the CDC, in any medium, of the same and/or its premises in brochures, announcements, advertisements, whether published, televised, aired through the radio, used in the internet or otherwise made public in or through any other form or medium. In addition, the parties agree that

HON. ROLANDO A. UY
City Mayor

MARIA MARGARITA B. TORRES
Vice President, RMHC

RAINIER JOAQUIN V. UY
Barangay, Barangay Carmen

ANECIA C. TONGSON, RSW
Head, CSWDO

MARICAR A. ANGELES
Executive Director, RMHC

RMHC shall have the right to include the CDC in its programs or activities, provided that the City Government of Cagayan de Oro and the Barangay shall be advised thereof.

16. Nothing in this Agreement shall create or be deemed to create any employer-employee relationship of any kind or nature between the Parties and their respective employees and/or representatives. Moreover, nothing in this Agreement shall constitute or be deemed to constitute a partnership between the parties. Neither party shall have the right to create or assume any obligation of any kind, express or otherwise, for or on behalf of the other party in any manner whatsoever. Neither shall anything contained in this Agreement or done in pursuance hereof constitute or be deemed to constitute the parties as agents or representatives of the other for any purpose or in any manner whatsoever. Neither party shall not hold itself out or allow itself to be held out as partner of the other.

17. Notwithstanding anything herein contained, the City Government of Cagayan de Oro and the Barangay hereby warrant that RMHC, including its stockholders, directors, officers, employees, or agents, shall not in any manner be liable to the LGU, nor to any other person within the CDC or its premises in respect of:

- a. Any damage, loss or destruction of any property or any injury due to any circumstances beyond RMHC's control (including but not limited to fire, flood, acts of God, escape of water, riot, civil commotion, curfew, emergency, labor disputes, shortages of manpower, fuel materials, electricity or water, or other events of force majeure or fortuitous cause);
- b. Any act, omission, default, misconduct or negligence of any contractor whose services have been secure for the construction of the CDC; any such contractor shall not in any manner or for any purpose be deemed to be an agent or employee of RMHC;
- c. Any damage, loss or destruction of any property or any injury arising out of the leakage or defect of the piping, wiring, sprinkler system or other apparatus or other structure in the CDC or its premises;
- d. Any damage, loss or destruction of any property or any injury caused by persons in the CDC or its premises, whether or not such persons be present thereat with the consent, knowledge and/or authority of the City Government of Cagayan de Oro their respective representatives, agents or employees;
- e. Any nuisance made and/or suffered in the CDC and/or on its premises;
- f. Any damage, loss or destruction of any property or injury, as well as any incident, occurrence, accident or any similar or analogous event/s otherwise growing out of and/or caused by any failure on the part of the City Government of Cagayan de Oro and the Barangay, or any other entity or person to maintain, supervise,

HON. ROLANDO A. UY
City Mayor

MARIA MARGARITA B. TORRES
Vice President, RMHC

HON. RAINIER JOAQUIN V. UY
Punong Barangay, Barangay Carmen

LES
RMHC

ANECIA C. TONGSON, RSW
Head, CSWDO

MARICAR A. ANGELES
Executive Director, RMHC

operate and/or manage the CDC Project, the CDC or its premises in a safe and secure condition;

- g. Any damage, loss or destruction of any property or any injury caused by reason that the CDC or its premises is being maintained, supervised, operated and/or managed in violation or non-observance or non-performance of the appropriate laws, ordinances, rules and regulations and/or other issuances of government instrumentalities or agencies.

Insofar as may be applicable, this provision shall extend to include all representatives, agents or employees of the City Government of Cagayan de Oro and the Barangay, of any other person or entity.

18. The parties agree that any activity that involves processing of personal data shall comply with Republic Act No. 10173, otherwise known as the Data Privacy Act of 2012, its implementing Rules and Regulations, and other applicable laws and administrative issuances of the National Privacy Commission.

19. This Memorandum of Agreement (MOA) constitutes the parties' legal, valid and binding obligation enforceable in accordance with its terms and conditions.

Any action or proceeding arising out of or in connection with this Agreement shall be instituted exclusively before the proper courts of Cagayan de Oro City, Philippines, to the exclusion of all other venues.

IN WITNESS WHEREOF, the Parties have hereunto affixed their signatures on this ____ day of _____ 2025, in Cagayan de Oro City, Philippines.

Ronald McDonalds House
Charities of the Philippines, Inc.

City Government of
Cagayan de Oro

Barangay Carmen

MARIA MARGARITA B. TORRES
Vice President

HON. ROLANDO A. UY
City Mayor

HON. RAINIER JOAQUIN V. UY
Punong Barangay

Signed in the presence of:

MARICAR A. ANGELES
Executive Director, RMHC

ANECIA C. TONGSON, RSW
City Government Department Head

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
_____) S.S.

BEFORE ME, a Notary Public for and City of _____, this __ day of _____ 2025, the parties personally appeared:

Name	Government Issued ID No.	DATE/PLACE
MARIA MARGARITA B. TORRES		
HON. ROLANDO A. UY		
HON. RAINIER JOAQUIN V. UY		
MARICAR A. ANGELES		
ANECIA C. TONGSON, RSW		

Known to me to be the same person who executed the foregoing Memorandum of Agreement and acknowledged to be that the same is his free and voluntary act and deed and the organization he represents.

This document consisting of Six (6) pages including this acknowledgement has been signed by the parties together with their instrumental witnesses on each and every page hereof.

WITNESS MY HAND AND SEAL on the date and place herein above written.

Doc. No. ____;
Page No. ____;
Book No. ____;
Series of 2025.

ANNEX A



RMHC builds the learning center in areas where they are most needed, to provide low-income families with a place where their children can learn and play in a safe environment.



Ronald McDonald Bahay Bulilit
San Fernando, Pampanga



The local government contributes in terms of land



DSWD oversees the day-to-day operations in the learning center.



Ronald McDonald Bahay Bulilit



What's Inside a Bahay Bulilit?

